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Civil Engineering

MANAGEMENT OF REAL PROPERTY

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This instruction implements Department of the Air Force Policy Directive (DAFPD) 32-90, *Real Property Asset Management*. It provides guidance on the effective management of real property holdings to include how to manage annexations and changes in legislative jurisdictions in accordance with Air Force (AF) and Department of Defense (DoD) issued policies, guidance, and procedures. This instruction applies to all civilian employees and uniformed members of the regular Air Force, Air Force Reserve, and Air National Guard. This publication may be supplemented at any level, but all supplements must be routed to the Office of Primary Responsibility for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the Office of Primary Responsibility using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through major command (MAJCOM) publications/forms managers. The authorities to waive wing/unit level requirements in this publication are identified with a tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Instruction (DAFI) 33-360, *Publications and Forms Management*, for a description of the authorities associated with the tier numbers. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority, or alternately, to the requestor's commander for non-tiered compliance items. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Instruction 33-322, *Records Management and information Governance Program*, and disposed of in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

SUMMARY OF CHANGES

This publication was substantially revised from the original instruction and must be completely reviewed. Major changes include: removal of accountability aspects of real property such as facility file maintenance, grant file maintenance, boundary survey, boundary inspections, managing real property facilities, annual grant compliance, resolving non-compliance items with grants, change the use, and change of category code of facility in order to consolidate within Air Force Instruction (AFI) 32-9005, *Real Property Accountability*.

Chapter 1

MANAGEMENT OF AIR FORCE REAL PROPERTY

1.1. Applicability. This instruction applies to real property owned, leased or otherwise acquired by the Department of Defense (DoD) and under the custody and control of the Department of the Air Force, including Joint Bases, Air Force Reserve, and Air National Guard. It applies to real property holdings in the United States, its territories and foreign nations. This AFI does not apply to Air Force Plants–Defense Industrial Reserve Property.

1.2. General Real Property Guidelines. Air Force members should maximize efficient and effective use of Air Force real property.

1.2.1. Members should:

1.2.1.1. comply with current strategic basing requirements in accordance with AFI 10-503, *Strategic Basing*.

1.2.1.2. Comply with the current base Installation Development Plan showing efficient use of assets, both current and future, as well as projected peacetime and wartime/contingency real property requirements.

1.2.1.3. Review real property holdings annually to identify unutilized, underutilized, or excess properties.

1.2.1.4. Maintain historical files for legislative jurisdiction, annexation, boundary surveys, annual compliance inspections, etc.

1.2.2. Members shall:

1.2.2.1. Maintain, on behalf of the Air Force, an accurate and complete real property inventory in accordance with Department of Defense Directive (DoDD) 4165.06, *Real Property; Department* of Defense Instruction (DoDI) 4165.70, *Real Property Management;* and DoDI 4715.14, *Operational Range Assessments*. **(T-0).** A complete real property inventory consists of all sites, including all lands and facilities, for which the Air Force has real property accountability, regardless of the organization using or funding the facility or land. Reference: AFI 32-9005.

1.2.2.2. Be familiar with all Department of Defense (DoD)-controlled real property within the installation commuting area (50-mile radius). **(T-0).**

1.2.2.3. Ensure real property is not used to promote political causes, issues or candidates. **(T-0).**

1.2.2.4. Maintain any real property (including caretaker responsibilities) for properties in the inventory or accepted into the inventory (whether programmed for demolition or acquired as a result of an on-going base realignment and closure, consolidation, etc.). **(T-0).** Members will maintain all property within the inventory (to include caretaker responsibilities) until final disposition of that property. **(T-0).**

1.3. Roles & Responsibilities.

1.3.1. Assistant Secretary of the Air Force for Installations, Environment and Energy (SAF/IE). Maintains overall responsibility and oversight of Air Force-controlled real property.

1.3.2. Deputy Assistant Secretary of the Air Force for Installations (SAF/IEI). Provides overall guidance and direction for real estate management, privatization, installation planning, basing, base realignment and closure (BRAC), environmental impact analysis, encroachment management, and community partnerships.

1.3.3. Deputy Assistant Secretary of the Air Force for Environment, Safety and Infrastructure (SAF/IEE). Provides overall guidance and direction for all Air Force real property life-cycle management, military construction, military housing, environment, safety, and occupational health.

1.3.4. Secretary of the Air Force General Counsel for Installations, Energy and Environment (SAF/GCN). Provides legal advice and counsel to SAF/IE, SAF/IEE, SAF/IEI, and AFCEC/CI on real estate decisions. Instrumental in developing and evaluating changes to standard real estate templates for Air Force use.

1.3.5. Office of The Judge Advocate General, Operations and International Law Directorate, Environmental Law and Litigation Division (AF/JAOE). Provides legal advice and litigation support for real property annexation disputes and other types of litigation regarding interests in real property.

1.3.6. Deputy Chief of Staff, Logistics Engineering & Force Protection, Directorate of Civil Engineers (AF/A4C). Establishes procedures, controls, and reporting for real property accountability (Integrated Data Call, Office of the Secretary of Defense Facility Sustainment Model, Plant Replacement Value, etc.).

1.3.7. Air Force Installation and Mission Support Center (AFIMSC). Responsible for resource advocacy for Air Force real property accountability and reporting, acquisition, and divestiture activities.

1.3.8. Air Force Civil Engineer Center Installations Directorate (AFCEC/CI). Responsible for all Air Force real property acquisition, management, and disposal actions. Processes final real property actions for approval at delegated authority or higher headquarters authority.

1.3.8.1. Air Force Civil Engineer Center/Real Property Management Division (AFCEC/CIT). Provides guidance to major commands and installations relating to real property management and real estate transactions. Processes all final actions for approval at delegated authority or higher headquarters authority. The primary point of contact for all Air Force real estate actions for continental United States (CONUS), Alaska, Hawaii, and outside continental United States (OCONUS) foreign countries within the Pacific Air Forces (PACAF).

1.3.8.2. Air Force Civil Engineer Center/Facility Engineering Directorate Europe (AFCEC/CFEE). The primary point of contact for all Air Force real estate actions in foreign countries within United States Air Forces in Europe (USAFE) and Air Forces in Africa (AFAFRICA).

1.3.8.3. Major Command. Provides mission and/or operational endorsement of any proposed real estate action. The intent of the endorsement is for the MAJCOM to ensure all proposed real estate actions are in the best interest of the Air Force and do not conflict with any basing or strategic planning actions at the MAJCOM level.

1.3.8.3.1. Air Force Reserve Component (AFR). Provides guidance and endorsement to reserve installations relating to real estate transactions.

1.3.8.3.2. National Guard Bureau (NGB) for Air National Guard (ANG). NGB acts as both a Headquarters and MAJCOM on the behalf of ANG. Provides guidance and endorsement to ANG installations relating to real estate transactions; determines the facilities necessary to accomplish mission and unit stationing for the components of the National Guard; and a channel of communication between Department of the Air Force and the states. Reference Title 10 United States Code (USC) § 10501, *National Guard Bureau.*

1.3.8.3.2.1. Installation commander for ANG. Overall responsibility for the efficient and effective use of installation real property.

1.3.8.3.2.2. United States Property and Fiscal Officer (USPFO) for ANG. Appointed by Governor of each state, the Commonwealth of Puerto Rico, Guam, and the U.S. Virgin Islands with concurrence from Chief of the NGB and the approval of Secretary of the Air Force and Secretary of the Army to serve as property and fiscal officer of that jurisdiction. Serves as Real Property Accountable Officer (RPAO) (on Title 10, USC, orders) and can appoint an Assistant USPFO for real property and funds. Provides concurrence on federal property acquisitions and disposals. **(T-0).** Supervises the acquisition and accountability of the states for federal property issued to National Guard. The USPFO also addresses official audit reports to mitigate identified deficiencies. Reference Title 32 USC § 708, *Property and Fiscal Officers;* Air National Guard Instruction (ANGI) 36-2, *United States Property and Fiscal Officer Appointment, Duties, and Responsibilities*; and DoDI 1200.18, *The United States Property and Fiscal Officer (USPFO) Program.* **(T-0).**

1.3.9. Installation Commander. Maintains overall responsibility for the efficient and effective use of installation real property and will appoint a Real Property Accountable Officer (RPAO) by appointment letter to oversee the integrity of the installation real property inventory. **(T-1).**

1.3.9.1. The RPAO may be the base civil engineer, an officer, a non-commissioned officer, or a U.S. citizen federal employee.

1.3.9.2. Contractors are not authorized to be RPAOs. **(T-0)**. Reference AFI 32-9005, *Real Property Accountability.*

1.3.10. Base Civil Engineer (BCE). The BCE will review all proposed real property actions for impacts to current Air Force real property and recommends any proposed alternatives to the installation commander. **(T-1).** The BCE will manage, oversee and account for the installation's real property inventory. **(T-1).**

1.3.11. Real Property Office (RPO). Shall ensure proper preparation of all real property action requests. RPO will engage directly with AFCEC/CIT and must maintain the official file for all installation real property actions to include executed agreements and supporting documentation.

1.3.12. United States Army Corps of Engineers (USACE). USACE serves as custodian of Air Force real property records (relating acquisition, disposition or temporary use), may provide technical support services as needed (title, surveys, appraisals, etc.), and may serve as real estate agent for Air Force installations (condemnations, relocation assistance, etc.) when requested.

1.3.13. General Services Administration (GSA). GSA provides leasing services outside of the installation, serves as the real estate agent for DoD disposals, and may provide technical support services (title, surveys, appraisals, etc.) when requested and available.

1.4. Special Considerations. Additional procedures for management of real property may apply to property:

1.4.1. Classified as general purpose space off the installation (controlled by GSA).

1.4.2. Currently classified as excess or scheduled for closure or disposal. Reference AFI 32-9004, *Disposal of Real Property.*

1.4.3. Classified as industrial facilities. Reference AFI 63-101/20-101, *Integrated Life Cycle Management* AFI 10-601, *Operational Capability Requirements Development*, AFI 99-103, *Capabilities-Based Test and Evaluation*, and AFI 63-138, *Acquisition of Services*.

1.4.4. Classified as intercontinental ballistic missile sites or commercial space launch control facilities. Reference Title 51 USC, *National and Commercial Space Programs.*

1.4.5. Awaiting BRAC action completion. Reference Title 10 USC § 2687, *Base Closures and Realignments*.

1.5. Retaining United States Air Force (USAF)-owned Property. USAF-owned property will be retained when it:

1.5.1. Supports current or planned missions authorized by the Air Force, DoD, or another federal agency.

1.5.2. Is being used effectively, is necessary to satisfy current or projected peacetime needs, or is needed to meet wartime/contingency requirements.

1.5.3. Is essential to protect mission sustainability, flexibility, operational changes, changes in equipment types, mobilization for a national security emergency, or for research and development of future defense or weapons systems.

1.5.4. Serves as a buffer to protect from encroachment, safety zones, projected sea level rise, storm surges, inundation, and/or flooding.

Chapter 2

ANNEXATION

2.1. Definition and Applicability.

2.1.1. When a municipality (city, county, state) desires to expand boundaries, the municipality may annex contiguous property. Property ownership does not change; however, taxation and municipal services (trash removal, fire and police protection services, schools, etc.) may change.

2.1.2. None of the powers or immunities of the installation commander are affected by annexation.

2.1.3. Annexation does not apply to foreign holdings.

2.2. Annexation of Land. All installation officials must remain neutral on all proposed annexations until SAF/IEI can determine whether to oppose the annexation in accordance with DoDD 4165.06 and DoDI 4165.70. **(T-0).**

2.2.1. Installation commanders must notify AFCEC/CIT immediately when they receive a formal or informal request or notice of annexation. **(T-1).** AFCEC/CIT will immediately notify the office of the Deputy Chief of Staff, Logistics Engineering & Force Protection, Directorate of Civil Engineers, Asset Management Division (AF/A4CA), SAF/IEI and AF/JAOE of the proposed annexation. **(T-1).**

2.2.1.1. As stated above, this notification from installation commanders must occur within 24 hours from the notice of annexation from the local municipality. **Note:** The processes described below supersedes and replaces previous guidance outlined in Joint Memo by SAF/IE & The Judge Advocate General entitled "Procedures for Annexation Proposals of Air Force Installations." **(T-1).**

2.2.1.2. When an ANG installation commander receives a formal or informal request or notice of annexation, the ANG installation commander must immediately notify NGB. NGB will notify AFCEC/CIT. **(T-1).** Processing will continue as stated in **paragraph 2.2.1**

2.2.2. The base civil engineer (BCE), with the help of the staff judge advocate (SJA), will prepare an annexation and evaluation report within 30 days from the notice of annexation from the local municipality. **(T-1).** The report will contain the following information:

2.2.2.1. Location and current use of proposed annexation area.

2.2.2.2. Title held by the federal government and degree of current legislative jurisdiction (e.g.; exclusive, proprietary, etc.).

2.2.2.3. Area map showing current or planned use of proposed annexation area and how this might affect jurisdictional boundaries.

2.2.2.4. Possible effects of proposed annexation on the installation comprehensive plan.

2.2.2.5. Possible effects on installation's mission, including review of whether the proposed annexation complies with the air installation compatible use zone (AICUZ) study.

2.2.2.6. Possible effects on current or proposed privatized housing (e.g., if the municipality has additional tax(es) or regulatory compliance obligations that the county may pass on to Air Force or residents in privatized housing under privatized housing contracts).

2.2.2.7. Possible effects on concessionaires or contractors (i.e., whether the municipality imposes additional taxes (income, sales, gross receipts, utility, property, general employment or franchise taxes) or other costs (licensing and permitting fees) other than the county, and whether, under contract, these costs may be passed on to the Air Force).

2.2.2.8. Known benefits of annexation on the installation or its personnel (e.g., comparative analysis of municipal and county utility rates).

2.2.2.9. Current source of utilities for the installation and an explanation of whether the cost or provider of utilities will change as a result of the proposed annexation.

2.2.2.10. Current providers of police, fire, emergency medical services, street maintenance, sanitation services, snow removal and other services, and an explanation of whether the cost or the providers of these services will change as a result of the proposed annexation.

2.2.2.11. If the proposal includes (or reasonably could include in the future) area(s) outside the installation, current zoning of such area(s) and an explanation of whether the proposed annexation may cause changes to the permitted land use in such area(s).

2.2.2.12. Possible adverse effects on the installation or installation personnel from municipal taxation, licensing, or other actions. **Note:** Special attention should be given to the potential for storm water fees imposed by the annexation authority, or any other state or local authority, under 33 USC § 1323(c), *Federal Facilities Pollution Control*.

2.2.2.13. Reasons given for annexation.

2.2.2.14. Whether another jurisdiction (county or other municipality) will oppose the proposed annexation.

2.2.2.15. Installation's relationship with the municipality.

2.2.2.16. Installation commander's recommendation on whether or not the Air Force should protest the proposed annexation.

2.2.3. The installation will forward the annexation and evaluation report to AFCEC/CIT to obtain SAF/IEI concurrence with recommendations. **(T-1).** This entire process must be accomplished within 30 days from the notice of annexation from the local municipality. **(T-0).** ANG will forward the annexation and evaluation report to NGB. NGB will forward to AFCEC/CIT. **(T-1).** Processing will continue as stated in **paragraph 2.2.1 (T-0).**

2.3. Litigation Report. The installation Staff Judge Advocate (SJA) will send a separate and concurrent litigation report analyzing the potential impact of a proposed annexation to AF/JAOE in accordance with AFI 51-301, *Civil Litigation*. **(T-1).** AF/JAOE reviews the SJA litigation report and prepares a litigation review for SAF/IEI that is forwarded to AFCEC/CIT and SAF/GCN.

2.4. Determination to Protest. AFCEC/CIT will combine the litigation review from AF/JAOE and the annexation and evaluation report from the BCE and forward to SAF/IEI. **(T-1).** The decision on whether or not to protest a proposed annexation will be made by SAF/IEI. AFCEC/CIT must notify AF/JAOE of SAF/IEI's determination. **(T-1).**

Chapter 3

FEDERAL LEGISLATIVE JURISDICTION

3.1. Federal Legislative Jurisdiction. Does not apply to foreign holdings.

3.1.1. The Real Property Office (RPO) must know the legislative jurisdiction(s) within the installation boundary and retain documentation with maps in the land record file. **(T-1).**

3.1.2. Federal legislative jurisdiction is the power of the federal government to pass and enforce laws on matters that are ordinarily reserved for the states, such as crime prevention and enforcement and family laws. It may also affect taxation and municipal services.

3.1.3. Regardless of legislative jurisdiction, the federal government has many powers and immunities in federal land areas (i.e., exemption from property taxes, Uniform Code of Military Justice (UCMJ) authority, etc.).

3.1.4. In most cases, the state continues to hold the right to serve state civil or criminal process (e.g., subpoena rights, warrant processes, etc.).

3.2. Types of Federal Legislative Jurisdiction.

3.2.1. Proprietorial (or proprietary). The federal government has acquired some right or title to an area in a state (fee simple, lease, easement, etc.) but has not obtained any of the state's authority to legislate over the area. The state retains all jurisdiction for crime prevention and enforcement (other than UCMJ violations), family laws, and certain metropolitan services. Proprietorial is the preferred jurisdiction unless the federal government requires another jurisdiction to carry out the assigned mission.

3.2.2. Partial. The state grants the federal government some of its authority to legislate but reserves the right to exercise, alone or with the federal government, some authority beyond the right to serve criminal process in the area (for example, the right to tax private property). The cession documentation will contain the reservations made by the state.

3.2.3. Concurrent. The state grants the federal government legislative jurisdiction over an area but has reserved to itself the right to exercise the same authority at the same time as long as the state does not interfere with the federal mission. This may be the preferred jurisdiction for a non-contiguous installation housing area, as one example. This jurisdiction also currently exists in Alaska because of the special provisions in the Alaska Statehood Act, P.L. 85-508, 7 July 1958.

3.2.4. Exclusive. The state grants all of the state's authority to the federal government in an area. Only Congress has authority to legislate in this area, and the federal government has the responsibility for law enforcement and municipal services (trash removal, road maintenance, fire protection, etc.). The right to vote or have access to state courts is limited by this jurisdiction.

3.3. Changing Federal Legislative Jurisdiction.

3.3.1. Each state has its own unique process for ceding (give up) and retroceding (taking back) legislative jurisdiction.

3.3.1.1. When federal legislative jurisdiction is required over property where there is none (proprietorial), the government must request the state cede (give) its powers over the property to the federal government. **(T-0).** Reference 40 USC § 3112, *Federal Jurisdiction.*

3.3.1.2. Changing federal legislative jurisdiction from exclusive to another jurisdiction requires the government to request the state retrocede (take back) some or all of its powers over the property. Reference 10 USC § 2683, *Relinquishment of Legislative Jurisdiction.*

3.3.2. To request a change in jurisdiction, the installation commander will submit a request and support documentation to AFCEC/CIT to staff through SAF/IEI to the state Governor for action. **(T-0).** The ANG installation commander is responsible to submit request and support documentation to the NGB. NGB will submit to AFCEC/CIT for further processing. **(T-0).**

3.3.3. After the state grants the jurisdiction change, the Real Property Office (RPO) will ensure notification of change is provided to the local US Attorney and the US Department of Justice, Criminal Division, Policy and Statutory Enforcement Unit, Office of Enforcement Operation. **(T-1).**

JOHN W. HENDERSON, SAF/IE
Assistant Secretary of the Air Force (Installations, Environment & Energy)

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

10 USC § 2687, *Base Closures and Realignments*

10 USC § 2683, *Relinquishment of Legislative Jurisdiction*

10 USC § 10501, *National Guard Bureau*

32 USC § 708, *Property and Fiscal Officers*

33 USC § 1323, *Federal Facilities Pollution Control*

40 USC § 3112, *Federal Jurisdiction*

51 USC, *National and Commercial Space Programs*

Alaska Statehood Act, P.L. 85-508, 7 July 1958

DoDD 4165.06, *Real Property*, 31 August 2018

DoDI 1200.18, *The United States Property and Fiscal Officer (USPFO) Program,* 15 April 2020

DoDI 4165.70, *Real Property Management*, 31 August 2018

DoDI 4715.14, *Operational Range Assessments*, 15 November 2018

DAFPD 32-90*, Real Property Asset Management*, 6 August 2007

DAFI 33-360, *Publications and Forms Management,* 1 December 2015

AFI 10-503, *Strategic Basing*, 13 October 2020

AFI 10-601, *Operational Capability Requirements Development*, 6 November 2013

AFI 32-9004, *Disposal of Real Property*, 23 September 2018

AFI 32-9005, *Real Property Accountability*, 4 February 2020

AFI 33-322, *Records Management and Information Governance,* 22 March 2020

AFI 51-301, *Civil Litigation*, 2 October 2018

AFI 63-101/20-101, *Integrated Life Cycle Management*, 29 June 2020

AFI 63-138, *Acquisition of Services, 30 September 2019*

AFI 99-103, *Capabilities-Based Test and Evaluation*, 18 November 2019

ANGI 36-2, *United States Property and Fiscal Officer Appointment, Duties, and Responsibilities*, 7 December 1999

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AF—Air Force

AFCEC/CFEE—Air Force Civil Engineer Center/Facility Engineering Directorate Europe

AFAFRICA—Air Forces in Africa

AF/A4C—Deputy Chief of Staff, Logistics Engineering & Force Protection, Directorate of Civil Engineers

AF/A4CA—Deputy Chief of Staff, Logistics Engineering & Force Protection, Directorate of Civil Engineers, Asset Management Division

AFCEC/CI—Air Force Civil Engineer Center Installations Directorate

AFCEC/CIT—Air Force Civil Engineer Center/Real Property Management Division

AFI—Air Force Instruction

AF/JAOE—Office of The Judge Advocate General, Operations and International Law Directorate, Environmental Law and Litigation Division

DAFPD—Department of the Air Force Policy Directive

AFR—Air Force Reserve

AFIMSC—Air Force Installation and Mission Support Center

AICUZ—Air Installation Compatible Use Zone

ANG—Air National Guard

ANGI—Air National Guard Instruction

BCE—Base Civil Engineer

BRAC—Base Realignment and Closure

CONUS—North American Continent

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DAFI—Department of the Air Force Instruction

GSA—General Services Administration

MAJCOM—Major Command

NGB—National Guard Bureau

OCONUS—Outside Continental United States

PACAF—Pacific Air Forces

P.L.—Public Law

RPAO—Real Property Accountable Officer

RPO—Real property office

SAF/GCN—Secretary of the Air Force General Counsel for Installations, Energy and Environment

SAF/IE—Assistant Secretary of the Air Force for Installations, Environment and Energy

SAF/IEI—Deputy Assistant Secretary of the Air Force for Installations

SAF/IEE—Deputy Assistant Secretary of the Air Force for Environment, Safety, and Infrastructure

SJA—Staff Judge Advocate

UCMJ—Uniform Code of Military Justice

US—United States

USACE—United States Army Corps of Engineers

USAF—United States Air Force

USAFE—United States Air Forces in Europe

USPFO—United States Property and Fiscal Officer

USC—United States Code

Terms

Annexation—When a municipality desires to expand their municipal boundaries, they may annex property. Property ownership does not change; however, taxation and municipal services (trash removal, fire and police protection services, schools, etc.) may change.

Boundary Survey—A study made by a certified surveyor to define or to redefine the perimeter (boundary line) of the installation property or to obtain data for constructing a map or plat showing a boundary line.

Caretaker—The continued security and maintenance of a vacant facility or facilities scheduled for disposal or demolition so as not to deteriorate the facility further than normal wear and tear.

Cession—Ceding or yielding by a state of its legislative jurisdiction over government controlled real estate to the federal government.

Continental United States (CONUS)—United States territory, including the adjacent territorial waters, located within the North American Continent between Canada and Mexico.

Facility—In this AFI, facility refers to any real property (structure, building, or linear asset to include any non-equity asset) that is not bare land.

Industrial Facility—Any AF owned, leased, or controlled real property facility that a contractor uses to fulfill government research, development, test, evaluation, production, maintenance, or modification contracts, or to store production machinery and equipment in support of such activity.

Legislative Jurisdiction—Authority to enact general state or municipal laws for an area of land.

Outside Continental United States (OCONUS)—The states of Hawaii and Alaska, Commonwealths of Puerto Rico and the Northern Mariana Islands, American Samoa, Guam, Midway and Wake Islands, the U.S. Virgin Islands, any other territory or possession of the United States, and associated navigable waters, contiguous zones, and ocean waters of which the natural resources are under the exclusive management authority of the United States.

Real Property—Lands, buildings, structures, utilities systems, improvements, and any legal right, privilege, or improvement belonging to or which accompanies a principal property. Includes equipment attached to and made part of buildings and structures (such as heating systems) but not movable equipment (such as plant equipment).

Real Property Facility—A building, structure, or other real property improvement.

Real Property Requirement—A valid military need for real property to support authorized forces. In determining need, consider the purpose to be served, the problem to be solved, and the end to be achieved. A requirement does not necessarily identify or describe the needed property; it states why the property is needed, and how the property is to be used.

Underutilized Property—An entire property or portion of a property that is not occupied or used for current program purposes of the accountable agency or property that is occupied in caretaker status only. An entire property or portion of a property that is used only at irregular periods or intermittently by the accountable agency or property that is being used for the agency's current program purposes that can be satisfied with only a portion of the property.